

In any event, the Court has the authority to amend the Judgment to add the alias under Section 187 and Code of Civil Procedure sections 473(a)(1) and 473(d). See Code Civ. Proc. § 473(a)(1) (“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party...”) and 473(d) (“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”).

The Court finds that amending the Judgment to add the additional language regarding the type of legal entity or individual capacities of the named Defendants is just and appropriate and will facilitate the enforcement of the Judgment, without changing its scope or effect.

The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Amend Judgment is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**

FILED BY: LEONE, MISTY

TENTATIVE RULING:

This matter was continued by order of the Court at the Issue Conference held on January 8, 2025, as will be set forth in a forthcoming order of the Court.

5. 9:00 AM CASE NUMBER: C23-02039

CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON

HEARING IN RE: JOINDER TO RICKY D. HORTON MSJ

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Kevin Horton’s Joinder in Co-Defendant Ricky Dean Horton’s Motion for Summary Judgment.

Defendant’s joinder motion is **denied** as set forth below.